

Uniform Evidence Law
Evidence Act
Chapter 3 – Admissibility of Evidence
Part 3.6 – Tendency and coincidence (ss 94–101)
PART 3.6 COMMENTARY
Last Review: 20/07/2023

[EA.Ch.3.Pt.3.6.30] Summary of this Part

View [pt 3.6 of the Evidence Act 1995 \(Cth\)](#) within the legislation collection.

PART 3.6 COMMENTARY

This Part establishes the “tendency rule” ([s 97](#)), which excludes “tendency evidence”, that is, evidence of conduct, character or reputation adduced to prove a “tendency” to act or think in a particular way, unless the evidence has “significant probative value” and reasonable notice has been given of the intention to adduce the evidence (although [s 100](#) allows a court to dispense with the notice requirement). Some UEL jurisdictions have enacted a number of amendments to this Part, including introduction of a new [s 97A](#), which creates a special rule regarding the admissibility of tendency evidence in criminal proceedings for child sexual offences.

The Part also establishes the “coincidence rule” ([s 98](#)), which excludes evidence “that 2 or more events occurred” adduced to prove that a person did a particular act or had a particular state of mind on the basis that “it is improbable that the events occurred coincidentally” (relying on similarities in the events and/or the circumstances in which they occurred) unless the same requirements imposed in respect of tendency evidence by [s 97](#) are satisfied.

Both [s 97](#) and [s 98](#) apply in civil and criminal proceedings, although [s 94](#) makes it clear that they do not apply to evidence that relates only to the credibility of a witness, to bail or sentencing proceedings, or to evidence of character, reputation, conduct or tendency if it is (as distinct from relevant to) a fact in issue. [Section 101](#) imposes further restrictions in criminal proceedings on tendency evidence and coincidence evidence about the defendant adduced by the prosecution. [Section 95](#) makes it clear that, where this Part renders evidence not admissible (or prevents it being

used) to prove a particular matter, but the evidence has been admitted for another purpose, the evidence cannot be used in the prescribed way.

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